TENANT-OCCUPIED PROPERTY ADDENDUM TO AGREEMENT OF SALE

TOP

This form recommended and approved for, but not restricted to use by, the members of the Pennsylvania Association of Realtors® (PAR).

PROPERTY _____

SELLER _____

BUYER _____

1. Within _____ days (5 days if not specified) of the Execution Date of the Agreement, Seller will furnish to Buyer copies of all written lease agreements currently in effect and memoranda of the terms of all oral leases for the Property. Where the full amount of security deposits paid by tenants will not be transferred at settlement, Seller will furnish to Buyer in writing the tenants' names, the amount of the security deposits, the amounts deducted, the dates and reasons for deduction and the tenants' written notification or acknowledgment of the deduction.

2. Upon receipt of all leases, and/or memoranda, **or if Seller fails to provide the leases and/or memoranda within the time stated, whichever is first,** Buyer will, within _____ days (5 if not specified):

(A) Accept the Property and agree to the terms of the RELEASE paragraph of the Agreement of Sale, OR

(B) Terminate the Agreement of Sale by written notice to Seller, with all deposit monies returned to Buyer according to the terms of the Agreement of Sale, OR

(C) Enter into a mutually acceptable written agreement with Seller.

If Buyer and Seller do not reach a written agreement during the time stated in this paragraph, and Buyer does not terminate the Agreement of Sale by written notice to Seller within that time, Buyer will accept the Property and agree to the terms of the RELEASE paragraph of the Agreement of Sale.

3. Seller will assign all leases and security deposits together with the interest, if any, to Buyer at settlement.

4. Other than obligations set forth in any written lease agreement(s), Seller represents that there are no unsatisfied commitments or agreements, whether oral or written, requiring Seller to fulfill any financial or other obligation to any tenant.

5. Seller will notify all Tenants in writing of the change in ownership at time of settlement.

All other terms and conditions of the Agreement of Sale remain unchanged and in full force and effect.

BUYER _____ **DATE** _____

BUYER _____ **DATE** _____

BUYER _____ **DATE** _____

SELLER _____ **DATE** _____

SELLER _____ **DATE** _____

SELLER _____ **DATE** _____

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